

(29)

Tentative Ruling

Re: **Lopez v. Nationwide National Insurance Co.**
Superior Court Case No. 26CECG01234

Hearing Date: September 10, 2026 (Dept. 503)

Motion: Amend Complaint

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/3/2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Hernandez v. Nava et al.***
Superior Court Case No. 26CECG00773

Hearing Date: September 10, 2026 (Dept. 503)

Motion: By Plaintiff Maribel Hernandez to Compel Defendant Alvaro Nava's Response to Request for Production of Documents, Set One, and Order for Sanctions

Tentative Ruling:

To grant plaintiff Maribel Hernandez's motion to compel defendant Alvaro Nava's responses to Plaintiff Maribel Hernandez' Request for Production of Documents, Set One. Defendant Alvaro Nava is ordered to produce all responsive documents, without objections, within 30 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of plaintiff Maribel Hernandez and against defendant Alvaro Nava. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) Defendant Alvaro Nava is ordered to pay \$810 in sanctions to Wild, Carter & Tipton within 30 days of the clerk's service of the minute order.

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Explanation:

Compel Responses

Plaintiff Maribel Hernandez ("Plaintiff") moves to compel initial responses from defendant Alvaro Nava ("Defendant") for Plaintiff's Request for Production of Documents, Set One ("Set One").

Responses to requests for production are due within 30 days after service. (Code Civ. Proc., § 2031.250, subd. (a).) If the party fails to serve responses, that party waives all objections to the request for production. (Code Civ. Proc., § 2031.300, subd. (a).)

On April 14, 2026, Plaintiff served Set One on Defendant. (Harris Decl., ¶ 2, Harris Supplemental Decl., Exh. A.) As of August 19, 2026, Defendant has not served any responses. (Harris Supplemental Decl., ¶ 3.) Defendant has not filed any opposition to the motion. Accordingly, the motion to compel responses to Set One is granted.

Sanctions

When a motion to compel responses is filed, the court shall impose monetary sanctions against the losing party unless there was substantial justification. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) The court may require a party who misuses the discovery process to "pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (*Id.*, § 2023.030, subd. (a).) Misuse of the discovery process includes failing to respond to discovery. (*Id.*, § 2023.010, subd. (d).)

Plaintiff is seeking sanctions in the amount of \$810 based on 2.5 hours of work by an attorney at \$300 an hour and \$60 in costs. Accordingly, Plaintiff's request for sanctions is granted. Defendant is ordered to pay \$810 in sanctions to Wild, Carter & Tipton within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/3/2026.
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